

Court No. - 2

Case :- WRIT - C No. - 41868 of 2011

Petitioner :- Chaudhary Nursing Home Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd.

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

Learned counsel for the petitioner submits that supplementary bill, which has been issued in June, 2011 is not in accordance with clause 5.6 of the U.P. Electricity Supply Code, 2005. He further submitted that according to the aforesaid clause maximum previous bill could have been charged for three months prior to the month in which the dispute has arisen, whereas according to supplementary bill issued by the respondents, they have charged for 18 months.

Sri Pankaj Kumar Shukla, learned counsel appearing for respondents no.1, 2, 3 and 5 is allowed two weeks time to file counter affidavit. Subject to petitioner depositing Rs.4 lacs (rupees four lacs) with the respondent no.3 within a period of two weeks from today, no further action shall be taken with regard to supplementary bill. The petitioner shall, however, continue to pay the future bills as and when due.

List this case after two weeks.

Order Date :- 27.07.2011.

Rks.

Court No. - 2

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd.

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Hon'ble Ashok Bhushan, J.

Hon'ble Bharati Sapru, J.

The respondents are allowed four weeks further time to file counter affidavit.

List thereafter.

Order Date :- 20.8.2011

Rakesh

Court No. - 34

Case :- WRIT - C No. - 41868 of 2011

Petitioner :- Chaudhary Nursing Home Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Chandan
Agarwal, Nripendra Mishra, Pankaj Kumar Shukla

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Jayant Banerji, J.

Heard Shri Ranjit Saxena, learned counsel for the petitioner. Shri Shravan Kumar Tripathi has put in appearance on behalf of the respondents.

By means of the present writ petition, the petitioner seeks to challenge the bill of June, 2011 raised as per the supplementary bill for slow metering for 18 months from 1.12.2009 till 22.6.2011, for an amount of Rs. 17,48,424.86/-.

The submission is that the said bill was raised on the basis of report of a check meter which was installed in the premises of the petitioner in the month of June, 2011. It appears that the old meter installed in the premises of the petitioner had been found defective during the course of an inspection and respondents had installed a check meter on 1.6.2011. It was then transpired that the old meter was slow than the permissible limit and after getting its results, a new meter no. UD011186 was installed on 22.6.2011 in place of old meter no. UPE-59154.

Submission of the learned counsel for the petitioner is that the reading of the check meter could not be made basis for issuance of the supplementary bill for a period of 18 months. At the most, when the defect was pointed out, the bills of last three months could have been generated on the basis of the reading of check meter. It is further argued that the old meter was not defective and there is no adverse report.

Be that as it may, the arguments raised by the learned counsel for the petitioner and the averments of the writ petition are factual in nature, no enquiry can be made within the scope of Article 226 of the Constitution of India. The appropriate course of action for the petitioner would be to approach the Consumer Grievance Redressal Forum framed under the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations, 2007. All issues raised herein can very well be addressed by the said

forum, who shall look into the matter in accordance with law.

The dispute regarding enhancement of tariff in the category of HV-2 can also be raised before the Consumer Grievance Redressal Forum. At this stage, learned counsel for the petitioner states that the petitioner seeks to approach the Consumer Grievance Redressal Forum within a period of three weeks from today.

In view of the above, we do not find any reason to enter into the merits of the claim of the petitioner.

For a period of three weeks from today, the interim protection granted by this Court shall continue. However, in case the petitioner fails to approach the said Forum, the interim protection provided here shall stand automatically vacated.

The writ petition is, accordingly, disposed of.

Order Date :- 7.12.2020

A. V. Singh